

Tentative Rulings for June 26, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503668	VISTA MONTANA, A CALIFORNIA NON-PROFIT MUTUAL BENEFIT CORPORATION. VS WILDER	MOTION TO VACATE ORDER UNDER CCP 473 (B)

Tentative Ruling:

Motion to Vacate Order DENIED.

Defendant/Cross-Complainant Wilder fails to show sufficient basis for granting of vacating the order pursuant to CCP 473(b). Defendant is reminded that the court's own law and motion rules provide that tentative rulings are posted at 3:00 p.m. prior to the hearing date and the procedure to request for oral argument by 4:30 p.m. Additionally, Defendant references the court's minute order from 5.07.26 that she did not receive notice in time to request oral argument. However, the minute order from May 7th indicating the prevailing party was to give notice, was in relation to giving notice of the results of the hearing on May 7th.

Defendant also addresses in her motion to vacate that there was a lack of service of the Complaint or First Amended Complaint. The hearing on May 7th did not involve service of the complaint upon Defendant and the court notes that Defendant filed an answer to the First Amended Complaint on 7.14.25. The Defendant is reminded that the hearing on May 7th was in regard to the deficiencies of Defendant's service of her cross-complaint upon Plaintiff/Cross-Defendant Vista Montana.

Case Management Conference confirmed for 6.26.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2505664	MERCEDES-BENZ FINANCIAL SERVICES USA LLC VS BASENTSYAN	MOTION TO STRIKE ANSWER ON COMPLAINT OF MERCEDES-BENZ FINANCIAL SERVICES USA LLC AS TO SJ WHOLESALE, INC.

Tentative Ruling:

Motion to Strike Answer GRANTED. No opposition filed by Defendant.

Defendant to file an answer through an attorney within 60 days. The court is giving Defendant time to hire counsel to address the mistaken identity claim.

An OSC re status of representation of Defendant SJ Wholesale is set for 9.17.26. Failure to timely file an answer or obtain representation will result in default.

Case Management Conference confirmed for 9.17.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508333	MARTINEZ VS CHANDLER	MOTION TO CONSOLIDATE ON COMPLAINT FOR AUTO OF MATHEW MARTINEZ BY MATHEW MARTINEZ, JACOMO VERSANI

Tentative Ruling:

Motion to Consolidate GRANTED. Case CVPS 2508333, CVPS 2508936 and CVPS 2509003 are consolidated for all purposes. CVPS 2508333 shall be the primary case number.

No objection submitted by Defendant.

Case Management Conference confirmed for 8.13.26. No new Case Management Declaration is required prior to the next court date.

The CMC and OSC in CVPS 2508936 in Department PS2 are vacated.

The CMC and OSC in CVPS 2509003 in Department PS2 are vacated.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508682	DAVENPORT VS PIEDRASANTA POOLS	HEARING ON PETITION FOR RELEASE OF PROPERTY FROM MECHANICS LIEN

Tentative Ruling: No tentative ruling. A hearing shall be conducted.